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PART I

Acts, Ordinances, President's Orders and Regulations

NATIONAL ASSEMBLY SECRETARIAT

Islamabad, the 3rd December, 2021

No. F. 22(5)/2019-Legis.—The following Act of *Majlis-e-Shoora* (Parliament) received the assent of the President on the 1st December, 2021 is hereby published for general information:—

ACT NO. XXVIII OF 2021

AN

ACT

further to amend the Muslim Family Laws Ordinance, 1961

WHEREAS it is expedient further to amend the Muslim Family Laws Ordinance, 1961 (VIII of 1961) for the purposes hereinafter appearing;

It is hereby enacted as follows:—

(923)

Price: Rs. 6.00

[1722(2021)/Ex. Gaz.]

1. **Short title and commencement.**— (1) This Act shall be called the Muslim Family Laws (Amendment) Act, 2021.

(2) It shall come into force at once.

2. **Amendment of section 4, Ordinance VIII of 1961.**—In the Muslim Family Laws Ordinance, 1961 (VIII of 1961), section 4 shall be re-numbered as sub-section (1) thereof and after sub-section (1), re-numbered as aforesaid, the following new sub-sections shall be added, namely:—

“(2) If a Muslim male from *Ahl-e-Teshih* dies, the share of a widow in the immovable property left behind by her deceased husband shall be as follows:—

- (a) one-fourth share of the fixed price or value of the property, if there is no child left behind the deceased husband; and
- (b) one-eighth share, if there is child left behind.

(3) If there are two or more widows, the share, as mentioned in sub-section (2), shall be divided equally among them.

(4) The price or value of the property shall be the price or value existing at the time of payment and not the price or value which existed at the time of death of the husband:

Provided that if the legal heirs of the deceased do not give the widow her share in the above terms, she shall become entitled to her due share in the corpus of immovable property.

(5) A widow is entitled to her share in the corpus of movable property of her deceased husband provided that the provisions of sub-sections (2) and (3) shall *mutatis mutandis* apply.

(6) *Fiqah-e-Jafri* recognizes right of a husband to get his share from the property left by his deceased wife, either movable or immovable, as follows:—

- (a) one-half share, if there is no child left behind; and
- (b) one-fourth share of the property, if there is child left behind.

(7) In case of dispute, the parties or any of the parties may have recourse to a court of competent jurisdiction or by approaching the *Mujtahid-e-Alam* from the panel maintained by the Council of Islamic Ideology. The decision of *Mujtahid-e-Alam* shall have a status of an award and the same shall be dealt with in accordance with the provisions of the Arbitration Act, 1940 (X of 1940).

Explanation.—The expression “*Mujtahid-e-Alam (Faqih-e-Azam)*” means a juris-consult, religious scholar or doctor of *Shia* school of thought well versed with *Shariah* having international repute and of such recognition. The Council of Islamic Ideology shall maintain a panel of *Mujtahid-e-Alam* having aforesaid qualifications.

(8) As enshrined in Article 227 of the Constitution of the Islamic Republic of Pakistan, the inheritance rights of *Ahle-e-Tashih* and matters connected therewith or ancillary thereto shall be decided according to their personal law interpreted by *Fiqah-e-Jafria* (*Shia* school of thought).”.

TAHIR HUSSAIN,
Secretary.